



U.S. Department
of Transportation

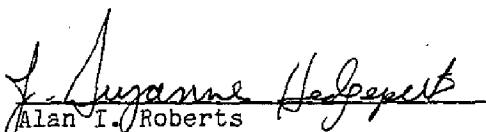
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8597 (EXTENSION)
ORIGINAL June 15, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8597 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 25 1992

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

McDonnell Douglas Corporation
St. Louis, MO

November 1, 1991



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8597

1. McDonnell Douglas Corporation, St Louis, Missouri, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to transport packages prescribed herein of an oxidizer for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of nitric acid in stainless steel non-DOT portable tanks and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on McDonnell Douglas Corporation's application dated March 23, 1981 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Nitric acid not over 70 percent concentration, classed as an oxidizer.
4. PROPER SHIPPING NAME (49 CFR 172.101). Nitric acid.
5. REGULATION AFFECTED. 49 CFR Part 172 Subpart C; 173.268.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification portable tank, of 500 gallon water capacity constructed of type 304 ELC stainless steel in accordance with McDonnell Specification No. 20784 dated March 28, 1979 and Drawing No. IEE 51-42. The tank must be moved over public roads as follows:
 - a. Movement across the road from one building to another must be by towing the mobile tank with a tow motor vehicle. Traffic must be stopped.
 - b. Movement along the road between buildings that are not across the road from each other must be by transporting the tanks properly secured on top of a truck bed.
 - c. Movement will be confined to distances of less than 1 mile over public roads.
8. SPECIAL PROVISIONS.
 - a. No shipping papers are required.
 - b. Tank must be transported by McDonnell Douglas Corporation employees and company owned vehicles.
 - c. Tanks must be placarded and marked in accordance with 49 CFR Part 172 Subparts F and D, respectively.
 - d. Each portable tank must be re-inspected and retested once every 5 years in accordance with 49 CFR 173.32 as prescribed for DOT Specification 60 portable tank.

e. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on contrasting background, "DOT-E 8597".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. April 30, 1982.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JUN 15 1981

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

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